

California Code of Civil Procedure does not govern. (Garcia Decl., Ex. A, Article VII, 7.1-7.3.)

The arbitration agreements in this case are governed by the FAA. CCP § 1281.2 does not apply when the FAA's rules govern. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115-16.)

Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration." (*Rodriguez, supra*, 136 Cal.App.4th at 114-115.)

Conclusion

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is GRANTED IN PART and DENIED IN PART.** The Court denies arbitration of the second cause of action for elder abuse and third cause of action for resident's rights. The Court compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

17. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: LABOR COMMISSION JUDGMENT
FILED BY:

TENTATIVE RULING:

The matter was originally set for hearing on June 1, 2026 when the matter was filed on January 20, 2026. That hearing was later continued to June 8, 2026. There is currently a hearing set for September 14, 2026 on plaintiff's motion filed April 21, 2026 regarding service of the Summons and Complaint. Given the present lack of service, the hearing is VACATED at this time and can be reset as appropriate in connection with case management proceedings in the matter once service of process is done or as the Court may otherwise hereafter order.

18. 9:00 AM CASE NUMBER: C26-00231
CASE NAME: JANE DOE VS. BRANDON BANKS
***HEARING ON MOTION IN RE: FOR LEAVE TO PROCEED UNDER A PSEUDONYM**
FILED BY: DOE, JANE

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff's Motion to Proceed Under a Pseudonym ("Motion") on the grounds that public identification in this action would expose her to concrete, collateral legal and contractual harm unrelated to the merits of her claims.

For the following reasons, Plaintiff's Motion to Proceed Under a Pseudonym is **DENIED**.

Factual Background

In July 2024, Plaintiff retained Defendants to represent her in pursuit of claims including gender-based pay discrimination, retaliation, and constructive termination against her Former Employer. At the time of retention, Plaintiff had already secured new employment. After Defendants filed a public

civil complaint on Plaintiff's behalf, Plaintiff's employment with a subsequent employer ended abruptly. Plaintiff contends that this termination constitutes a central component of the damage she suffered because of Defendants' representation. However, Plaintiff claims she is contractually restricted in how that incident may be described publicly.

Plaintiff entered into a private severance agreement with the subsequent employer which includes confidentiality and non-disparagement provisions. The severance agreement restricts Plaintiff from publicly making statements that could reasonably be construed as accusing the employer or its representatives of unlawful, improper, or retaliatory conduct. As a result, Plaintiff takes the position that publicly identifying herself in this malpractice action would put her at risk of breaching her contractual obligations under the severance agreement.

Legal Standard for Use of Pseudonyms

The First Amendment of the United States Constitution guarantees that Court proceedings are open and public. (*Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555, 580.) Such public access is essential to a functional democracy, because it "promotes trust in the integrity of the court system and it exposes abuses of judicial power to public scrutiny." (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110-111 citing *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1221.) "When an individual files a lawsuit in state court to accomplish private ends... they do so with full knowledge of the possibly disadvantageous circumstance that the documents and records filed [therein] will be open to public inspection." (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 237-238 citing *Estate of Hearst* (1977) 67 Cal.App.3d 777, 783.)

Under Code of Civil Procedure ("Code Civ. Proc.") section 422.40, in a civil complaint, the title of the action shall include the names of all the parties, except as provided by statute or rule of the Judicial Council. Courts only allow parties to proceed under a pseudonym in special circumstances, where the parties' need for anonymity outweighs prejudice to the opposing party and the public, mainly because of the serious constitutional implications involved. (*Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 766-767; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110; *Does I thru XXIII v. Advanced Textile Corp.* (9th Cir. 2000) 214 F.3d 1058, 1067.)

Because of the inherently sensitive nature of some proceedings, there are some California statutes which specifically allow for keeping certain parties' identities confidential. This includes California Civil Code ("Civ. Code") section 1708.87(f)(1)[plaintiff in action for nonconsensual distribution of sexually explicit materials may proceed under pseudonym], Code Civ. Proc. section 372.5 [allowing pseudonyms for guardian ad litem litigating on behalf of a minor], Civ. Code section 3427.3 [allowing pseudonyms in actions for interference with access to health care], Civ. Code section 1708.89 [allowing pseudonyms for doxxing] and California Rules of Court ("CRC"), Rule 8.401(a) [providing for anonymity in juvenile appeals].

In the absence of a statute addressing a pseudonym, the Court may still grant such anonymity to preserve an important privacy right. (*Doe v. Lincoln Unified School Dist.*, supra, 188 Cal.App.4th at 766.) In determining whether to allow a party to proceed in a case under a pseudonym where no statute is involved, the Court must apply the overriding interest test. (*Department of Fair Employment & Housing*, supra, 82 Cal.App.5th at 111.) A party seeking anonymity has the burden to show that

there exists an overriding interest. (Id at 112.)

Procedurally, because a hearing is required, a party who wants to proceed anonymously will file the initial complaint or petition conditionally under a pseudonym and then move for an order granting permission to proceed that way. If the request is granted, the initial pleading can remain. If pseudonym use is denied, the pleading must be amended to state the party's true name.

(*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 111, fn. 1.)

Analysis

Overriding Interest Test

Plaintiff is relying solely on common law as her basis to proceed under a pseudonym, thus the Overriding Interest Test must be applied. Under the Overriding Interest Test, a Court will find an overriding interest exists where (1) there exists an overriding interest that supports anonymity; (2) there is a substantial probability that the interest will be prejudiced absent anonymity; (3) the proposed anonymity is narrowly tailored to serve the overriding interest; and (4) no less restrictive means exist to protect the interest. (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, citing *NBC Subsidiary (KNBC-TV), Inc, supra*, 20 Cal.4th at 1218-1221.) In considering whether there is an overriding interest, the Court “must bear in mind the critical importance of the public’s right to access judicial proceedings.” (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 111-112.) Outside of an explicit statute, proceeding by pseudonym occurs only in the rarest circumstance. (*NBC Subsidiary (KNBC TV), Inc, supra*, 20 Cal.4th at 1226.)

Overriding Interest that Supports Anonymity

California Courts have recognized at least two overriding interests which are relevant enough to allow for the redaction of names. The first interest is maintaining privacy of highly sensitive and potentially embarrassing personal information. (*In re M.T.* (2024) 106 Cal.App.5th 322, 336–341 [records revealing gender identity change]; *Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1068 [medical and psychological records].) The second interest is protecting against the risk of retaliatory harm. (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 112 [protection against physical retaliation to family members].)

Plaintiff misapplies *Google* in her argument in support for proceeding with a pseudonym. In *Doe v Google*, the First District Court of Appeal was discussing the applicability of the Garmon Preemption of whether the National Labor Relations Act preempted the plaintiffs PAGA claims against Google’s confidentiality rules. (*Doe v. Google, Inc.* (2020) 54 Cal.App.5th 948, 956-957.) Plaintiff argues that naming herself in this lawsuit would violate the confidentiality and non-disparagement provisions in her severance agreement which would force Plaintiff to pay back her severance payment and that she would open herself to collateral legal exposure in her pending arbitration proceedings. (Motion at p. 4: 7-16; 5: 10-13.) The issues discussed in *Google* are not helpful in determining whether Plaintiff may proceed with a pseudonym.

Sensitive and Embarrassing Information

Plaintiff did not move on the basis to maintain privacy of highly sensitive and potentially embarrassing personal information. Defendants point out that Plaintiff has not provided any case law or authority

that severance agreements contain embarrassing or highly sensitive material. Severance agreements are extremely common, and there is nothing inherently embarrassing about a person losing their job and entering into an agreement concerning their departure from a job. Plaintiff has failed to present evidence about the severance agreement containing sensitive or embarrassing information.

Potential Retaliation

In *Does I thru XXIII v. Advanced Textile Corp.*, the Ninth Circuit Court of Appeals noted that in determining when evaluating retaliation in the context of proceeding anonymously, it should evaluate (1) the severity of the threatened harm, (2) the reasonableness of the anonymous party's fears, (3) the anonymous party's vulnerability to such retaliation. (*Does I thru XXIII v. Advanced Textile Corp.* (9th Cir. 2000) 214 F.3d 1058, 1068.)

In *Advanced Textile Corp.*, the Court held the trial court abused its discretion in denying plaintiffs, who were foreign (People's Republic of China and Bangladesh) garment workers on the island of Saipan, permission to bring their lawsuit anonymously. (Id. at 1063.) In making its decision, the Court acknowledged that the trial court failed to consider the plaintiffs' evidence that they could face physical violence and deportation to China or Bangladesh, where they would be arrested upon arrival. (Id.) In *Doe v. Stegall* (5th Cir. 1981) 653 F.2d 180, the Court of Appeals reversed a district court order denying a protective order to plaintiffs, who were schoolchildren. In coming to its decision, the Court noted that the plaintiffs, who were children, were especially vulnerable to threats of retaliation. (Id. at 186.) In *United States v. Doe* (9th Cir. 1980) 655 F.2d 920, the Court acknowledged that courts have permitted the use of pseudonyms to protect person from harassment, injury, ridicule or personal embarrassment. The case involved long-term prison inmates who feared retaliation in prison for cooperating with the government. (Id. at 929.)

Plaintiff basis for proceeding under a pseudonym is the potential financial retaliation of losing her severance pay by violating confidentiality and non-disparagement provisions in her severance agreement, and that it would create collateral legal exposure with respect to her pending arbitration proceedings. (Motion at p. 4: 7-16; 5: 10-13.) The Court looks to analyze Plaintiff's arguments under the three-factor test for evaluating retaliation under *Advanced Textile Corp.*

Severity of Threatened Harm

Plaintiff provides no argument or evidence of the severity of the threatened harms she complains of. Plaintiff mentions losing her entire severance award but does not describe the amount of her severance or explain the implications or severity of losing her severance would have on her. Plaintiff mentions collateral legal exposure with respect to her pending arbitration proceedings, but she does not explain what they are, their magnitude, or the effects it would have on Plaintiff.

Plaintiff does not provide adequate evidence for the Court to evaluate the severity of threatened harm of Plaintiff's potential retaliation. Plaintiff has failed to carry her burden of proof to establish an overriding interest that supports anonymity and does not pass the overriding interest test. The Court's analysis cannot go any further.

Conclusion

Based on the analysis above, Plaintiff's Motion to Proceed Under a Pseudonym is **DENIED**.

19. 9:00 AM CASE NUMBER: MSN20-1173
CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER
***HEARING ON MOTION IN RE: AWARD OF REASONABLE ATTORNEY FEES AND COSTS**
FILED BY: LESTER, TOBIAS M.
TENTATIVE RULING:

The Court, *sua sponte*, CONTINUES this matter to **August 31, 2026, 9:00 am**, in **Department 34**.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM INTERROGATORIES, SET ONE**
FILED BY: FULLER PROPERTIES, LLC
TENTATIVE RULING:

The matter is off calendar pursuant to the Court's prior rulings.

21. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO SPECIAL INTERROGATORIES, SET TWO**
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Parties to Appear.

22. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE**
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Parties to Appear.

23. 9:01 AM CASE NUMBER: C24-02351